

Dugdh Utpadak Sahkari Sangh Ltd. v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 22 December 2015 · Writ-C No. 33747 of 2009 · **Writ dismissed as infructuous; interim order discharged.**

HEADNOTE

Writ listed as infructuous; petitioner unrepresented even on revised call. Petition dismissed as infructuous and any interim order discharged, without deciding a supply-code question.

FACTUAL SUMMARY

Dugdh Utpadak Sahkari Sangh Ltd. instituted Writ-C No. 33747 of 2009 against the State of Uttar Pradesh and others in the High Court of Judicature at Allahabad. After remaining pending for more than six years, the petition was placed on 22 December 2015 under the cause-list heading of infructuous cases. Nobody appeared for the writ petitioner even on a revised call of the list. The order does not disclose the underlying electricity or supply-code controversy.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

dismissal as infructuous on listing

HOLDING

A writ listed under infructuous cases, with the petitioner absent even on a revised call of the cause list, is dismissed as infructuous and any interim order stands discharged, without adjudication of the supply dispute. ¶ 1

PRINCIPLE TAGS

writ-dismissed-as-infructuous-with-liberty-to-move-afresh Writ listed as infructuous; petitioner unrepresented even on revised call. Petition dismissed as infructuous and any interim order discharged, without deciding a supply-code question. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE WRIT AND ANY ELECTRICITY OR SUPPLY-CODE CLAIM

Dismissed solely as infructuous on non-appearance under the infructuous listing. ¶ 1